

1 ENGROSSED SENATE
2 BILL NO. 1618

By: Gollihare of the Senate

3 and

4 Harris of the House
5

6 An Act relating to the Pretrial Release Act; amending
7 22 O.S. 2021, Section 1105.2, which relates to
8 conditions of release; defining term; requiring court
9 to conduct certain risk assessments; requiring
10 assessment to be provided to defense counsel upon
11 request; updating statutory language; updating
12 statutory references; and providing an effective
13 date.

14 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

15 SECTION 1. AMENDATORY 22 O.S. 2021, Section 1105.2, is
16 amended to read as follows:

17 Section 1105.2. A. For the purposes of this section, "pretrial
18 risk assessment" means a validated actuarial assessment that
19 predicts a defendant's pretrial risk of danger to persons or the
20 community or risk of flight. The pretrial risk assessment may
21 include:

22 1. Information related to the defendant's criminal and
23 substance abuse history, and ties to the community; and

24 2. Consideration of the nature, circumstances, and seriousness
of the offense.

1 B. Following an arrest for a misdemeanor or felony offense and
2 before formal charges have been filed or an indictment made, the
3 arrested person may have bail set by the court as provided in ~~this~~
4 ~~act~~ the Pretrial Release Act; provided there are no provisions of
5 law to the contrary.

6 ~~B.~~ C. When formal charges or an indictment has been filed, bail
7 shall be set according to law and the pretrial bond, if any, may be
8 reaffirmed unless additional security is required. Every judicial
9 district may, upon the order of the presiding judge for the
10 district, establish a pretrial bail schedule for felony or
11 misdemeanor offenses, except for traffic, wildlife, or water safety
12 offenses included in subsections B, C and D of Section 1115.3 of
13 ~~Title 22 of the Oklahoma Statutes~~ this title and those offenses
14 specifically excluded herein. The bail schedule ~~established~~
15 ~~pursuant to the authority of this act~~ shall exclude any offense for
16 which bail is not allowed by law. The bail schedule ~~authorized by~~
17 ~~this act~~ shall be set in accordance with guidelines relating to bail
18 and shall be published and reviewed by March 1 of each year by the
19 courts and district attorney of the judicial district.

20 ~~C.~~ D. The court shall conduct a pretrial risk assessment to
21 assist in determining release conditions for a defendant. The
22 results of the assessment shall not be used as the sole basis to
23 grant or deny pretrial release. Upon request, results of the
24 assessment shall be provided to defense counsel.

1 E. The pretrial bail shall be set in a numerical dollar amount.

2 If the person fails to appear in court as required the judge shall:

3 1. Rescind the bond and proceed to enter a judgment against the
4 defendant for the dollar amount of the pretrial bail if no private
5 bail was given at the time of release; provided, however, the court
6 clerk shall follow the procedures as set forth in Section 1301 et
7 seq. of Title 59 of the Oklahoma Statutes in collecting the
8 forfeiture amount against the person who fails to appear in court;
9 or

10 2. Rescind and forfeit the private bail if cash, property or
11 surety bail was furnished at the time of release as set forth in
12 Section 1301 et seq. of Title 59 of the Oklahoma Statutes.

13 ~~D.~~ F. When a pretrial program exists in the judicial district
14 where the person is being held, the ~~judge~~ court may utilize the
15 services of the pretrial release program when ordering pretrial
16 release, except when private bail has been furnished.

17 ~~E.~~ G. Upon an order for pretrial release or release on bond,
18 the person shall be released from custody without undue delay.

19 ~~F.~~ H. The court may require the person to be placed on an
20 electronic monitoring device as a condition of pretrial release.

21 ~~G.~~ I. In instances where an electronic monitoring device has
22 been ordered, the court may impose payment of a supervision fee.
23 Payment of the fee, in whole or according to a court-ordered
24

installment schedule, shall be a condition of pretrial release. The court clerk shall collect the supervision fees.

SECTION 2. This act shall become effective November 1, 2026.

Passed the Senate the 26th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the ____ day of _____,
2026.

Presiding Officer of the House
of Representatives